

The U.P. Kerosene Control Order, 1962

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State of Uttar Pradesh - Act

The U.P. Kerosene Control Order, 1962

UTTAR PRADESH

India

The U.P. Kerosene Control Order, 1962

Rule THE-U-P-KEROSENE-CONTROL-ORDER-1962 of 1962

Published on 27 December 1962

Commenced on 27 December 1962

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The U.P. Kerosene Control Order, 1962

Published vide Notification U.P. Gazette, (Extraordinary), dated December 27, 1962, vide Notification No. 11978/29-BD-(2)-IK-62, dated 27.12.1962

1.

Short title, extent and commencement.

- (i) This order may be called the Uttar Pradesh Kerosene Control Order, 1962.

(ii)

It shall extend to the whole of Uttar Pradesh.

(iii)

It shall come into force at once.

2.

Definitions.

- In this Order, unless there is anything repugnant in the subject or context,-

(a)

"agent" means an agent appointed by an Oil Company for distribution of [kerosene to distributor or to retail dealers] [Substituted by Notification No. 1367-XXIX-7 88 (KO)/89-CA-10/1955-O/1962-AM-13/1990, dated 10th May, 1990, for the words 'kerosene to retail dealers'.]

and holding licence in Form III;

(aa)

["Distributor" means a person holding a licence in Form III-A to take Kerosene delivery from an agent for distribution thereof to retail dealers, and to such other persons as directed by the Licensing Authority;]

[Inserted by Notification No. 1367-XXIX-7-88 (KO)/89-CA-10/1955-O/1962-AM-13/1990, dated 10th May, 1990.]

(b)

"Form" means a form given in the Schedule hereto;

(c)

"Kerosene" means mineral oil prepared for illumination purposes distilled from petroleum;

(d)

"Licensee" means an agent or [a distributor or a retail dealer]

[Substituted by Notification No. 1367-XXIX-7-88 (KO)/89-CA-10/1955-O/1962-AM-13/1990, dated 10th May, 1990, for the words 'a retail dealer'.]

;

(e)

["Licensing Authority" means the District Magistrates of the district and includes the Additional District Magistrate (Civil Supplies) or the District Supply Officer of the district authorised by him to perform any of the functions of Licencing Authority under this order.]

[Substituted by Notification No. 07/2017/545/29-7-2017-Writ-07/2017, dated 12.10.2017 (w.e.f. 27.12.1962).]

(f)

"Retail Dealer" means a person holding a license in Form IV;

(g)

"Retail sale" means sale in quantities not exceeding 18.5 litres;

(h)

"Oil Company" means any of the following companies, namely:

Messrs. Burmah Shell Oil Storage and Distribution Co. of India Ltd., Messrs. Esso, Standard Eastern Inc., Messrs, Caltex (India) Ltd., Messrs. Indo-Burmah Petroleum Co., Messrs. Western India Oil Distributing Co. Ltd. and Messrs. Indian Oil Co. Ltd; and

(i)

"State Government" means the Government of Uttar Pradesh;

(j)

["Divisional Commissioner" means the Commissioner of a Division of the State of Uttar Pradesh having jurisdiction within the limits of division.]

[Inserted by U.P. Kerosene Control (Tenth Amendment) Order, 1980, dated 12.5.1980.]

3.

Restriction on sale and storage.

- (i) No person shall sell, offer for sale or storage for sale, kerosene except under a licence granted by the Licensing Authority of the District in which he carries on business.

[(i-a) A separate licence shall be obtained in respect of every place of business.

[Added by Notification No. 1098/XXIX-BD-(2)-I-K-62, dated March 19, 1963.]

(ii)

Nothing contained in sub-clause (i) shall apply to an Oil Company supplying kerosene oil to agent for the purpose of distribution [to the distributors or the retail dealers] .].

(iii)

[Nothing contained in sub-clause (i) or (i-a) of this clause shall apply to a person appointed to run a Government fair

price shop during the subsistence of such appointment.]

[Inserted by Notification No. 1367-XXIX-7-88 (KO)/89-CA-10/1955-O/1962-AM-K3/1990, dated 10th May, 1990.]

4.

Price control.

- No agent shall sell or offer for sale, kerosene at a price exceeding wholesale price and no retail dealer shall sell or offer for sale, kerosene at a price exceeding the retail price.

Explanation I. - "Wholesale price" means the price fixed by the Government of India from time to time plus such incidental charges and margin of profit as may be determined for the area by the District Magistrate of the district.

Explanation II. - "Retail price" means the wholesale price plus such incidental charges and margin of profit as may be determined for the area by the District Magistrate of the district.

5.

Application for licence.

- An application for licence shall be [in Form I or Form I-A or Form II]

[Substituted by Notification No. 1367-XXIX-7-88 (KO)/89-CA-10/1955-O/1962-AM-13/1990, dated 10th May, 1990.]

, as the case may be.

6.

Number of and criteria for licences.

- [(i) The Licensing Authority shall, subject to the orders of the State Government issued in this behalf, grant such number of licences of each category as he may consider necessary for securing equitable distribution and availability at fair prices of Kerosene.]

[Substituted by Notification No. 1367-XXIX-7-88 (KO)/89-CA-10/1955-O/1962-AM-13/1990, dated 10th May, 1990.]

(ii)

A licence in Form III shall be granted only to a person who is appointed as agent by an oil company.

[(ii-a) A licence in Form III-A shall be granted to a person holding a licence in Form III, a co-operative society, a company or corporation or any other body owned or controlled by the State Government, or to any person having experience of Kerosene business at places at which no agent has been appointed.]

[Inserted by Notification No. 1367-XXIX-7-88 (KO)/89-CA-10/1955-O/1962-AM-13/1990, dated 10th May, 1990.]

(iii)

A licence in Form IV shall be granted keeping in view the experience and extent of kerosene business carried on by the applicant, and also his previous conduct.

(iv)

[A licence in Form IV shall not be granted [***]

[Inserted by Notification No. 1367-XXIX-7-88 (KO)/89-CA-10/1955-O/1962-AM-13/1990, dated 10th May, 1990.]

to a licensee holding licence in Form III or III-A or to a member of his family or benami or to any other applicant for the same premises in which a licence in Form III or III-A has already been granted.]

7.

Form and conditions of licence.

- A licence granted under this Order shall be in Form III [in the case of an agent, in Form 111-A in the case of a distributor]

[Substituted by Notification No. 1367-XXIX-7-88 (KO)/89-CA-10/1955-O/1962-AM-13/1990, dated 10th May, 1990, for the words 'in the case of an agent'.]

and in Form IV in the case of retail dealer and in each case shall be subject to the conditions stated therein:

[Provided that for a person who is appointed to run a fair price shop in accordance with the orders in force no licence in Form IV shall be necessary, but he shall during the subsistence of such appointment be deemed to be a licensee in Form IV and bound by all the terms and conditions applicable to a licensee holding licence in Form IV under this Order.]

[Inserted by Notification No. 1367-XXIX-7-88 (KO)/89-CA-10/1955-O/1962-AM-13/1990, dated 10th May, 1990.]

8.

[One time Licence.

[Substituted by Notification No. 07/2017/545/29-7-2017-Writ-07/2017, dated 12.10.2017 (w.e.f. 27.12.1962).]

- A licence granted under this order shall be one time licence and shall be valid unless cancelled by the licensing authority under this order:

Provided that a licence granted before the commencement of the Uttar Pradesh Kerosene Control (Fourteenth Amendment) Order, 1994 shall be valid for a period for which it is granted and if the licensee at his option applies for one time licence before the expiry of period of validity of the existing licence, in that case, the proportionate fee of the remaining period of the existing licence, shall be adjusted towards the fee prescribed for one time licence.]

9.

Duplicate licence.

- When a licence is lost, destroyed or mutilated, a duplicate licence may, on the application of the licensee, be issued by the Licensing Authority for remaining period of the licence.

10.

Licence fee.

- [(i)]

[Substituted by U.P. Kerosene Control (First Amendment) Order, 1975, dated 25.11.1975.]

The fee prescribed below shall be chargeable in respect of-

(A) [Licence in Form III?

(a) for issue of licence

...

Rs. 100 for each year

(b) for renewal of licence

...

Rs. 50 for each year

(c) for issue of duplicate licence

...

Rs. 100

(B) Licence in Form III-A?

(a) for issue of licence

...

Rs. 60 for each year

(b) for renewal of licence

...

Rs. 30 for each year

(c) for issue of duplicate licence

...

Rs. 60

(C) Licence in Form IV

(a) for issue of licence

...

Rs. 15 for each year

(b) for renewal of licence

...

Rs. 6 for each year

(c) for issue of duplicate licence

...

Rs. 15]

[Substituted by Notification No. 1367-XXIX-7-88 (KO)/89-CA-10/1955-O/1962-AM-13/1990, dated 10th May, 1990.]

(ii)

The licence fee for the issue of licence shall be paid before the licence is issued and the licence fee [

*)

[Omitted 'for renewal of a licence or' by Notification No. 07/2017/545/29-7-2017-Writ-07/2017, dated 12.10.2017 (w.e.f. 27.12.1962).]

for issue of duplicate licence shall be paid along with the application for the [

*)

[Omitted 'renewal or' by Notification No. 07/2017/545/29-7-2017-Writ-07/2017, dated 12.10.2017 (w.e.f. 27.12.1962).]
issue, as the case may be.

(iii)

[(a) Each applicant for grant of a licence under this Order shall within a week of the demand and before issue of the licence, furnish a security of [Rs. 1,000 (Rupees One thousand) in the case of an agent, Rs. 500 (Rupees Five hundred) in the case of a distributor and]

[Inserted by U.P. Kerosene Control (Eleventh Amendment) Order, 1980 (w.e.f. 15.9.80.)]

Rs. 100 in the case of a retail dealer in the form of fixed deposit in a post office duly pledged to the licensing authority for the compliance of the provisions of the said Order and performance of the terms and conditions of the licence:

Provided that a person holding licence under this Order at the commencement of the Uttar Pradesh Kerosene Control (Eleventh Amendment) Order, 1980 shall furnish the aforesaid amount of security in the said manner, within a month of the demand made after such commencement.

(b)

The licensee shall, if the amount of security at any time falls short of the amount specified under clause (a) of this sub-clause, forthwith deposit the amount to make up the deficiency in the amount of security on being required to do so by the Licensing Authority.

(c)

The whole or any part of the amount of the security which is not forfeited under the provisions of this Order, shall, on application being made for that purpose be refunded to the licensee on the termination of his licence.]

11.

[Forfeiture of security, suspension and cancellation of [***].

[Substituted by U.P. Kerosene Control (Eleventh Amendment) Order, 1980, w.e.f. 15.9.1980.]

- The Licensing Authority may, for reasons to be recorded in writing, forfeit the security either in whole or in part, suspend or cancel any licence [***]

[Omitted 'or refuse to renew a licence' by Notification No. 07/2017/545/29-7-2017-Writ-07/2017, dated 12.10.2017 (w.e.f. 27.12.1962).]

if it is satisfied that the licensee has contravened any provisions of this Order or the conditions of the licence or any direction issued thereunder:

Provided that the licensee shall be given a reasonable opportunity of submitting his explanation before forfeiture of security either in whole or in part before a licence is cancelled [***]

[Omitted 'or its renewal' by Notification No. 07/2017/545/29-7-2017-Writ-07/2017, dated 12.10.2017 (w.e.f. 27.12.1962).]

refused or it is suspended otherwise than by way of suspension pending inquiry:

Provided further that no order of suspension pending inquiry shall extend beyond a period of two weeks:

Provided also that it shall not be necessary to give an opportunity in respect of an alleged contravention which has led to the conviction of the licensee.]

12.

[Appeal.

[Substituted by the U.P. Kerosene Control (Tenth Amendment) Order, 1980, dated 12.5.1980.]

- [(i) any person aggrieved by the cancellation of his licence may within thirty days of the communication of the order prefer as appeal to the concerned Divisional Commissioner or to such other officer as nominated by the State Government in this behalf.]

(ii)

State Government may, as a special case transfer to itself an appeal filed under sub-clause (i) above and dispose it of.

(iii)

Appeal preferred before the State Government prior to the commencement of this Order, may be transferred by the State Government for disposal to the Divisional Commissioner concerned.]

13.

Restriction on utilisation of kerosene.

- A licensee shall not utilise or allow to be utilised, his stock of kerosene except for sale in accordance with the provisions of this Order and the conditions of his licence.

14.

Powers of Licensing Authority, etc.

- The Licensing Authority or any officer authorised by it in this behalf, may-

- (i)
by order, require any licensee to maintain such records and furnish such returns, reports, statements or information in regard to his business as may be specified in the Order;
- (ii)
inspect of any books or documents relating to kerosene business belonging to or under the control of a licensee;
- (iii)
enter upon, inspect or search any premises used or believed to be used for the purchase, sale or storage of kerosene; and
- (iv)
seize any kerosene in respect of which he has reason to believe that a contravention of this Order has been, is being or is about to be made and also seize any record relating to such kerosene.

15.

Repeal.

- Subject to the provisions of clause 16 of the Uttar Pradesh Kerosene (Price) Control Order, 1962 is hereby repealed except in relation to cases of contravention of the Order before the commencement of this Order.

16.

Savings.

- Any order or determination made or action taken under the Uttar Pradesh Kerosene (Price) Control Order, 1962 and in force before the commencement of this Order, shall be deemed to have been made or taken under the corresponding provision of this Order.

Schedule

Form I

Form of application for licence as an agent [***]

[Omitted 'or for renewal of such licence' by Notification No. 07/2017/545/29-7-2017-Writ-07/2017, dated 12.10.2017 (w.e.f. 27.12.1962).]

1.

Applicant's name, parentage and address

.....

2.

If the application is made on behalf of a firm or an incorporated company, the trading name

.....

3.

Names and addresses of all partners and directors, as the case may be

.....

4.

Exact address of the places of storage and business

.....

5.

Whether any licence has been obtained under the Petroleum Act, 1934 ? If so, specify

.....

6.

Approximate quantity of kerosene handled by applicant (in gallons/litres) during last five years:

.....

19

.....

19

.....

19

.....

19

.....

19

.....

7.

Name of the supplier Oil Company

.....

8.

Whether applicant is holding any agent's licence in any other district? If so, specify,

.....

9.

Whether the applicant held licence under Kerosene Control Order, 1952? If so, number and date of the licence

.....

10.

Whether the applicant has ever been tried or convicted for any offence ? If so, particular thereof

.....

11.

Number of existing licence if the application is for renewal

.....

I/We have read the provisions of the Uttar Pradesh Kerosene Control Order, 1962 and understand that the licence issued to me/us will be subject to the provisions of the Order and conditions given in the licence and that any breach of the conditions of the licence will amount to a breach of the Order.

I/We declare that to the best of my/our information and belief, the above information is correct and complete.

.....

Signature of the applicant(s)

Certificate to be furnished by Oil Company in the case of agent appointed.

Certified that the applicant has been appointed as agent of Oil Company for and his agency number is.....

.....

(Signature of Manager)

[Form I-A]

[Inserted by Notification No. 1367-XXIX-7-88 (KO)/89-CA-10/1955-O/1962-AM-13/1990, dated 10th May, 1990.]

Form of application for licence as Distributor [***]

[Omitted 'or for renewal of licence' by Notification No. 07/2017/545/29-7-2017-Writ-07/2017, dated 12.10.2017 (w.e.f. 27.12.1962).]

1.

Applicant's name, parentage and address.

.....

2.

If the application is made on behalf of a firm or an autonomous body, company, corporation or body in the trading name, Names and addresses of all partners and directors, as the case may be.

.....

3.

Exact address of the places of store and business. (Give House No. or Boundaries of the place).

.....

4.

Whether any licence has been obtained under the Petroleum Act, 1934. If so, specify.

.....

5.

Approximate quantity of Kerosene handled by applicant (in gallons/litres) during last five years.

.....

(1) 19.

.....

(2) 19.

.....

(3) 19.

.....

(4) 19.

.....

(5) 19.

.....

6.

Whether applicant is holding any agent's or distributory licence in any other district. If so, specify.

.....

7.

Whether the applicant held licence under Kerosene Control Order, 1959? If so, number and date of the licence.

.....

8.

Whether the applicant has ever been tried or convicted for any offence. If so, particulars thereof.

.....

9.

Number of existing licence if the application is for renewal.

.....

I/We have read the provisions of the Uttar Pradesh Kerosene Control Order, 1962 and understand that the licence issued to me/us will be subject to the provisions of that Order and conditions given in the licence and that any breach of the conditions of the licence, will amount to a breach of the Order.

I/We declare that to the best of my/our information and belief the above information is correct and complete.

.....

Signature of the Applicant(s).

Form II

Form of application for licence as a retail dealer in Kerosene [***]

[Omitted 'or for renewal of licence' by Notification No. 07/2017/545/29-7-2017-Writ-07/2017, dated 12.10.2017 (w.e.f. 27.12.1962).]

1.

Applicant's name, parentage and address

.....

2.

If the application is made on behalf of a firm or an incorporated company, the trading name.

.....

3.

Names and addresses of all partners and directors, as the case may be

.....

4.

Applicant's place of business

.....

5.

How long the applicant has been trading in Kerosene

.....

6.

Approximate quantity of Kerosene handled by the applicant (in gallons/litres) during the last five years

.....

19

.....

19

.....

19

.....

19

.....

19

.....

7.

Name of supplier

.....

8.

Whether the applicant has ever been tried for or convicted of any offence. If so, the particulars thereof

.....

9.

Whether the applicant held any licence under the Kerosene Control Order, 1952 ? If so, number and date of the licence

.....

10.

Number of existing licence if the application is for renewal

.....

I/We have read the provisions of the Uttar Pradesh Kerosene Control Order, 1962 and understand that the licence issued to me/us will be subject to the provisions of that Order and conditions given in the licence and that any breach of the conditions of the licence, will amount to a breach of the Order.

I/We declare that to the best of my/our information and belief the above information is correct and complete.

.....

Signature of the Applicant(s).

Form III

Licence to an agent under U.P. Kerosene Control Order, 1962.

1.

Name of licensee

.....

2.

If the licensee is a firm or an incorporated Company, names
and addresses of all partners or directors, as the case may be

.....

3.

Exact address of place of business

.....

4.

Exact address of place of storage of Kerosene Oil

.....

5.

Date upto which licence is valid

.....

The licence is granted subject to the conditions given hereinafter.

.....

Signature of Licensing Authority

[***]

[Omitted 'Renewal Endorsement' by Notification No. 07/2017/545/29-7-2017-Writ-07/2017, dated 12.10.2017 (w.e.f. 27.12.1962).]

Conditions of Licence

1. The licensee shall display his licence prominently at his place of business.

2. [The licensee shall not,-

(i)
carry on business in or store kerosene except in the premises specified in his licence;

(ii)
at any time keep in the premises specified in licence any stocks of kerosene oil which do not belong to him:

Provided that the premises may be changed or additional premises used with the permission of the licensing authority:

Provided further that any specified stock of kerosene may be delivered by the agent [at the premises of the distributors or retail dealer]

[Substituted by Notification No. 608/XXIX-BI-I (Mitti Tel)-12-69, dated April 20, 1970, and again substituted by the U.P. Kerosene Control (First Amendment) Order, 1975, dated 25.11.1975.]

with the permission of the licensing authority.]

3. The licensee shall maintain a stock register in which he will show correctly-

(a)
the opening stock on each day;

(b)
the quantity of Kerosene received by him from the Oil Company each day;

(c)
the quantities sold, delivered or otherwise disposed of each day showing places of destination and the names and address of consignees; and

(d)
the closing stock at the end of the day.

4. The licensee shall submit to the Licensing Authority by the 5th day of each month a return in respect of the previous month in the following form:

Stock at the beginning of the month

Quantities received during the month

Total 1 and 2

Quantities delivered during the

month _____

Total Quantity issued

To other licensees

Non-licensees giving names and quoting the
permission of Licensing Authority under which delivered

Balance

1

2

3

4

5

6

7

5. The licensee shall before the commencement of a calendar month send intimation to the Licensing Authority the quota fixed by the Oil Company for that month.

6. The licensee shall not engage in retail sale in Kerosene [* * *]

[Omitted by Notification No. 1367-XXIX-7-88 (KO)/89-CA-10/1955-O/1962-AM-13/1990, dated 10th May, 1990.]

7. The licensee shall exhibit, in a prominent position at his place of business, a statement showing the current wholesale price of Kerosene, under the Order.

8. The licensee shall issue to every purchaser of Kerosene, a correct receipt giving the quantity sold, the rate at which sold and the total amount charged and shall keep a duplicate of the same available for inspection.

9. Except with the permission of the Licensing Authority, licensee shall not sell Kerosene to any person [who is not a distributor or a retail dealer.]

[Substituted by Notification No. 1367-XXIX-7-88 (KO)/89-CA-10/1955-O/1962-AM 13/1990, dated 10th May, 1990,]

10. The licensee shall not refuse to sell or withhold from sale, any Kerosene in his possession in such quantities, at such times, to such persons and in such manner, as the Licensing Authority may by written order, direct.

11. The licensee shall render all reasonable facilities to persons authorised by the Licensing Authority for inspection of permits, stocks and accounts.

12. If the licensee contravenes any of the conditions of this licence or is found to have made any incorrect statement in his application for a licence or in any return submitted by him or any accounts maintained by him, his licence may be cancelled and he shall also be punishable under Section 7 of the Essential Commodities Act, 1955.

13. The licensee shall comply with any general or special directions issued by the Licensing Authority, from time to time in regard to the disposal of any stocks of Kerosene held by him or in regard to the maintenance of any other records or returns, as required by the Licensing Authority.

14. [If the Oil Company, for whatever reasons, cancels the agency of the agent, the licence of that agent shall be cancelled forthwith and the licensing authority shall not go into merits of such cancellation of the agency.]

[Added by Notification No. 1376/XXIX-BI-I (MT)-44-69, dated 11.3.1970.]

[Form III-A

[Form III-A inserted by Notification No. 1367-XXIX-7-88 (KO)/89-CA-10/1955-O/1962-AM-13/1990, dated 10th May, 1990, published in the U.P. Gazette, Extraordinary, Part IV, section Kha, dated 10th May, 1990.]

]

Licence to a distributor under the Uttar Pradesh Kerosene Control Order, 1962.

1.

Name of licensee

.....

2.

If the licensee is a firm or an incorporated company or a co-operative society or a company or corporation or any other body owned or controlled by the State Government, names and addresses of all partners or directors or office bearers, as the case may be

.....
3.

Exact address of place of business (Give House No. or
Boundaries of the place)

.....
4.

Exact address of place of storage of Kerosene Oil

.....
5.

Date upto which licence is valid

.....
The licence is granted subject to the conditions given hereinafter.

.....
Signature of Licensing Authority

[***]

[Omitted 'Renewal Endorsement' by Notification No. 07/2017/545/29-7-2017-Writ-07/2017, dated 12.10.2017 (w.e.f. 27.12.1962).]

Conditions of Licence

1. The licensee shall display his licence prominently at his place of business.

2. The licensee shall not,-

(i)
carry on business in or store kerosene except in the premises specified in his licence;

(ii)
at any time keep in the premises specified in his licence any stocks of kerosene oil which do not belong to him:
Provided that the premises may be changed or additional premises used with the permission of the licensing authority:
Provided further that any specified stock of kerosene may be delivered by the distributor at the premises of the retail
dealers with the permission of the Licensing Authority.

3. The licensee shall maintain a stock register in which he will indicate correctly-

(a)
the opening stock on each day;

(b)
the quantity of Kerosene received by him from the agent each day,

(c)
the quantities sold, delivered or otherwise disposed of each day showing places of destination and the names and
addresses of consignees; and

(d)
the closing stock at the end of the day.

4. The licensee shall submit to the Licensing Authority by the 5th day of each month a return in respect of the previous
month in the form prescribed by the Licensing Authority.

5. The licensee shall not engage in retail sale in Kerosene.

6. The licensee shall exhibit, in a prominent position at his place of business, a statement showing the current wholesale
prices of Kerosene under the Order.

7. The licensee shall issue to every purchaser of Kerosene, a correct receipt giving the quantity sold, the rate at which
sold and the total amount charged and shall keep a duplicate of the same available for inspection.

8. Except with the permission of the Licensing Authority, licensee shall not sell Kerosene to any person who is not a
retail dealer.

9. The licensee shall not refuse to sell or withhold from sale, any Kerosene in his possession in such quantities, at such
times, to such persons and in such manner, as the Licensing Authority may by written order, direct.

10. The licensee shall render all reasonable facilities to persons authorised by the Licensing Authority for inspection of
permits, stocks and accounts.

11. If the licensee contravenes any of the conditions of this licence or if found to have made any incorrect statement in

his application for a licence or in any return submitted by him or any accounts maintained by him, his licence may be cancelled and he shall also be punishable under Section 7 of the Essential Commodities Act, 1955.

12. The licensee shall comply with any general or special directions issued by the Licensing Authority, from time to time in regard to the disposal of any stocks of Kerosene held by him or in regard to the maintenance of any other records or returns, as required by the Licensing Authority.

Form IV

Licence granted to a retail dealer [* * *]

[Omitted vide corrigendum Notification No. 550/XXIX-B-D(2)-1-K-72, dated July 31, 1963.]

under U.P. Kerosene Control Order, 1962

1.

Name and parentage of licensee

.....

2.

If the licensee is a firm or an incorporated Company, names
and addresses of all partners or directors, as the case may be

.....

3.

Exact address of place of business

.....

4.

Date upto which licence is valid

.....

The licence is granted subject to the conditions given hereinafter.

.....

Signature of Licensing Authority

[***]

[Omitted 'Renewal Endorsement' by Notification No. 07/2017/545/29-7-2017-Writ-07/2017, dated 12.10.2017 (w.e.f. 27.12.1962).]

Conditions of Licence

1. The licensee shall display his licensee prominently at his place of business.

2. [The licensee shall not-

(i)
carry on business in or store kerosene except in the premises specified in his licence;

(ii)
at any time keep in the premises specified in his licence any stocks of Kerosene Oil which do not belong to him;
Provided that the premises may be changed or additional premises used with the permission of the Licensing Authority.]
[Substituted by Notification No. 608/XXIX-B-I-I(Mitti Tel)-12-69, dated 20.4.1970.]

3. The licensee shall make only retail sales of Kerosene and that in accordance with the orders issued by the Licensing Authority, from time to time.

4. The licensee shall maintain the following register:

(i)
Stock register showing [correctly]
[Inserted by Notification No. 608/XXIX-B-I-i(Mitti Tel)-12-69, dated 20.4.1970.]

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(a)
the opening stock on each day,

(b)
quantities received on each day and the name of supplier,

(c)
total quantities disposed each day, and

(d)

closing balance at the end of the day.

(ii)

[Daily Sales Register showing full details of each sale.]

[It was deleted by Notification No. 9201/XXIX-AV-1-33-(KO)-78-CA-10-1955-Order 1962-AN-(8)-1978, dated 29.9.1978 and again Inserted by (Ninth Amendment) Order, 1979, vide Notification No. 10235/XXIX-AV-1-33(KO)-78-CA-10-55-Order-1962-AM(2)-1979, dated 9.4.1979.]

5. The licensee shall issue to every customer in the case of sale of 18.5 litres, a correct receipt showing the quantity sold, the rate at which sold and the total amount charged.

6. The licensee shall comply with any general or special directions issued by the Licensing Authority from time to time, in regard to the disposal of the stocks of Kerosene held by him or in regard to the maintenance of any other records of references as required by the Licensing Authority.

7. The licensee shall not refuse to sell or withhold from sale, any Kerosene in his possession in such quantities at such times, to such persons and in such manner, as the Licensing Authority may by written order, direct.

8. The licensee shall render all reasonable facilities to persons authorised by the Licensing Authorities for inspection of permits, stocks and accounts.

9. If the licensee contravenes any of the conditions of this licence or is found to have made any incorrect statement in his application for a licence or in any return submitted by him or any accounts maintained by him, his licence may be cancelled and he shall also be punishable under Section 7 of the Essential Commodities Act, 1955.

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